

HOUSE No. 4674

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 3, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1653) of Marjorie C. Decker relative to protecting employee free speech, reports recommending that the accompanying bill (House, No. 4674) ought to pass [Representatives Berthiaume of Spencer and Sullivan-Almeida of Abington dissent].

For the committee,

MICHAEL S. DAY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting employee free speech.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 149 of the Massachusetts General Laws is hereby amended by
2 adding after section 20E the following section:-

3 Section 20F.

4 (a) As used in this section, the following words shall have the following meanings unless
5 the context clearly requires otherwise:

6 “Employer,” an employer or its agent, representative or designee;

7 "Political matters," matters relating to elections for political office, political parties,
8 proposals to change legislation, policy or regulation and the decision to join or support any
9 political party or political, civic, community, fraternal or labor organization; and

10 "Religious matters," matters relating to religious affiliation and practice and the decision
11 to join or support any religious organization or association.

(b) Except as provided in subsections (c) and (d) of this section, any employer; including the state and any instrumentality or political subdivision thereof, who subjects or threatens to subject any employee to discipline, sanction or discharge because of:

(1) the exercise by such employee of the right to speech or assembly guaranteed by the first amendment of the United States Constitution, the Massachusetts Declaration of Rights or the General Laws provided such activity does not substantially or materially interfere with the employee's bona fide job performance or substantially interfere with the working relationship between the employee and the employer; or

(2) such employee's refusal to (i) attend an employer-sponsored meeting with the employer, the primary purpose of which is to communicate the employer's opinion concerning

religious matters or political matters, or (ii) listen to speech or view communications, including electronic communications, the primary purpose of which is to communicate the employer's opinion concerning religious matters or political matters, shall be liable to such employee for up to treble damages caused by such discipline or discharge, including punitive damages, and for reasonable attorney's fees as part of the costs of any such action for damages, and the full amount of gross loss of wages or compensation, with costs and such reasonable attorney's fees as may be allowed by the court.

(c) Nothing in this section shall prohibit: (1) an employer from communicating to its employees any information that is necessary for such employees to perform their job duties; (2) an institution of higher education, or any agent, representative or designee of such institution, from meeting with or participating in any communications with its employees that are related to the institution, or a part of coursework, any symposia or an academic program at such institution;

or (3) casual conversations between employees or between an employee and an employer,
provided participation in such conversations is not required.

(d) The provisions of this section shall not apply to a religious organization, whether or
not incorporated, if the principal or income of said organization is primarily used or appropriated
for religious, benevolent or charitable purposes.

(e) The attorney general may make complaint or seek indictment against any person for a
violation of this section.

SECTION 2: Section 150 of Chapter 149 of the General Laws, as appearing in the 2022
Official Edition, is hereby amended by inserting, in line 21, after the word “sections” the
following number:- 20F,.